

“ the Measure of 1949 ” means the Pastoral Reorganisation Measure, 1949. 12 & 13 Geo. 6 No. 3.

“ the bishop ” means the bishop for the time being of the diocese concerned (including during a vacancy in the see the guardian of the spiritualities thereof).

“ the diocesan board of finance ” means the diocesan board of finance of the diocese concerned.

(2) In paragraph (c) of sub-section (1) of section seventeen of the Measure of 1944 and in sub-section (7) of section five and sub-section (4) of section twelve of the Measure of 1949 and in this Measure the expression “ year ” means a period of twelve months beginning on the first day of April in any year and ending on the thirty-first day of March in the year following.

9.—(1) Where in any diocese there is a board of finance which, though not duly constituted in accordance with the provisions of the Diocesan Boards of Finance Measure, 1925, is recognised for the purpose of this Measure as being the diocesan board of finance, the provisions of this Measure shall apply in relation to that diocese as if the said board had been duly constituted. Provisions as to diocesan boards of finance not regularly constituted. 15 & 16 Geo. 5 No. 3.

(2) In this section the expression “ recognised ” means recognised by a certificate signed by the bishop and registered in the diocesan registry.

10. Sub-sections (2) and (3) of section thirty of the Measure of 1944 and sub-sections (2) and (3) of section eleven of the Measure of 1949 are hereby repealed. Repeals.

11.—(1) This Measure may be cited as the Diocesan Stipends Funds Measure, 1953. Short title and commencement.

(2) This Measure shall come into operation on the appointed day.

No. 3

A MEASURE passed by the National Assembly of the Church of England

To amend the Incumbents (Discipline) Measure, 1947, and the Church Dignitaries (Retirement) Measure, 1949, in relation to proceedings under those Measures in respect of social or political activities.

[6th May 1953.]

Amendment
of S.2 of the
Incumbents
(Discipline)
Measure, 1947.
10 & 11 Geo. 6.
No. 1.

1. The following provisos shall be substituted for all words after "any other Act or Measure" in section two of the Incumbents (Discipline) Measure, 1947:—

"Provided that no such proceedings shall be instituted in respect of—

(a) any act or omission which took place more than three years before the complaint in writing made under section four of this Measure, or

(b) any question of doctrine, ritual or ceremonial, or

(c) the social or political opinions of the incumbent:

And provided that no proceedings in respect of conduct unbecoming as aforesaid shall be instituted in relation to the social or political activities of the incumbent."

Amendment
of S.4 of the
Church
Dignitaries
(Retirement)
Measure,
1949.
12 & 13 Geo. 6.
No. 1.

2. The following provisos shall be substituted for the proviso to sub-section (1) of section four of the Church Dignitaries (Retirement) Measure, 1949:—

"Provided that no such proceedings shall be instituted if and so far as the allegations relate to—

(a) any act or omission which took place more than three years before the institution of the proceedings, or

(b) any question of doctrine, ritual or ceremonial, or

(c) the social or political opinions of the dignitary:

And provided that no proceedings in respect of conduct unbecoming as aforesaid shall be instituted if and so far as the allegations relate to the social or political activities of the dignitary."

Extent.

21 & 22 Geo. 5.
No. 4.

3. This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man, but may be applied to the Channel Islands or either of them, as defined in the Channel Islands (Church Legislation) Measure, 1931, in accordance with that Measure.

Short title,
citation and
construction.

4.—(1) This Measure may be cited as the Incumbents (Discipline) and Church Dignitaries (Retirement) Amendment Measure, 1953.

(2) Section one of this Measure and the Incumbents (Discipline) Measures, 1947-1950, may be cited together as the Incumbents (Discipline) Measures, 1947-1953.

(3) Section two of this Measure and the Church Dignitaries (Retirement) Measure, 1949, may be cited together as the Church Dignitaries (Retirement) Measures, 1949-1953.

(4) Section one of this Measure shall be construed as one with the Incumbents (Discipline) Measures, 1947-1950.

(5) Section two of this Measure shall be construed as one with the Church Dignitaries (Retirement) Measure, 1949.

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